

This contract is intended to be a binding Real Estate contract. This contract is not a government-specified form. The Brokerage and Seller may negotiate any of the terms of this contract before signing. The amount and how Brokerage commissions are formulated are not set by law and are fully negotiable prior to execution of this contract.

1. **PARTIES.** This Exclusive Right to Sell Listing Agreement ("**Agreement**") is entered into by and between sponsoring broker _____ ("**Brokerage**") and _____ ("**Seller**").
In consideration of the following agreements and Brokerage's efforts to procure a ready, willing and able buyer for the sale or exchange of property and improvements described below (including the undivided interest in the common elements and accumulated reserves, if any) (collectively, "**Property**"), Seller hereby grants Brokerage the exclusive right to sell (or, at Seller's direction, lease, exchange, joint venture or grant an option to purchase) the Property (collectively, "**Transfer of Property**") pursuant to the terms and conditions set forth below ("**Exclusive Right**").

2. **TERM.** Brokerage's Exclusive Right shall begin on _____, 20____ ("**Effective Date**") and shall extend until 11:59 P.M. on _____, 20____, at which time this Agreement shall automatically terminate ("**Termination Date**"). Notwithstanding anything in this paragraph to the contrary, in the event that the Termination Date is more than one year from the Effective Date, Seller may terminate this Agreement on 11:59 p.m. on the date that is one year after the Effective Date (deemed the "Termination Date" if applicable) by providing 30 days prior written notice to Brokerage. In the event that this Agreement is terminated pursuant to this paragraph, the provisions of Section 22 do not apply. From the date of Seller's acceptance of any offer and execution of a contract for the Transfer of Property ("**Accepted Offer**"), unless the Accepted Offer is expressly subject to the continual marketing of the Property, Brokerage shall have no further obligation to market, advertise for sale or show the Property. Once all of the contingencies for the Accepted Offer have been satisfied or waived, Brokerage shall have no further obligation to Seller except to present Seller with any offers or counteroffers pertaining to the Property.

3. **PRICE.** Seller directs Brokerage to market the Property for sale at a price of \$_____ ("**Marketing Price**"). The Marketing Price may be changed at Seller's written direction. If Seller has not accepted a contract by _____, 20____ at 11:59 p.m., then the Marketing Price shall be changed to \$_____.

Check if applicable

☐ Seller also directs Brokerage to market the Property for lease at a price of \$_____ per month ("**Rental Price**"). The Rental Price may be changed at Seller's written direction. If Seller has not accepted a contract by _____, 20____ at 11:59 p.m., then the Rental Price shall be changed to \$_____ per month.

4 PROPERTY.

Address: _____ Unit Number(s): _____
City: _____ State: _____ Zip Code: _____

Parking Space Number(s): _____ Parking is: ☐ Deeded; ☐ Limited Common Element; ☐ Assigned; ☐ Indoor; ☐ Outdoor
Storage Space Number(s): _____ Storage is: ☐ Deeded; ☐ Limited Common Element; ☐ Assigned

5. **POSSESSION.** Seller shall surrender possession of the Property in broom-clean condition and remove all debris and personal property not conveyed to the buyer before closing of the transaction set forth in the purchase and sale agreement or lease, unless otherwise agreed to in writing.

6. **DESIGNATED AGENT.** Brokerage and Seller hereby agree that (a) _____, a sponsored licensee of Brokerage, is Seller's exclusive designated agent ("**Designated Agent**") with Brokerage, and (b) neither Brokerage nor other sponsored licensees of Brokerage will be acting as agent for Seller. Brokerage shall have the discretion to appoint a substitute designated agent for Seller as Brokerage determines necessary, and Seller shall be advised within a reasonable time of any such substitution. Seller understands and agrees that Brokerage and any of Brokerage's other sponsored licensees may enter into agreements with prospective buyers of the Property as agents of those buyers.

7. **MINIMUM SERVICES.** Pursuant to the Illinois Real Estate License Act of 2000 (225 ILCS 454/1 et seq.), as amended, Brokerage, through the Designated Agent, must provide to Seller, at a minimum, the following services: (a) accept delivery of and present to Seller

offers and counteroffers to buy, sell, lease or otherwise transfer any interest in the Property or any portion thereof; (b) assist Seller in developing, communicating, negotiating and presenting offers, counteroffers and notices that relate to the offers and counteroffers until a lease or purchase agreement is fully executed and all contingencies are satisfied or waived; and (c) answer Seller's questions relating to the offers, counteroffers, notices and contingencies.

8. SELLER DUTIES. Seller warrants that Seller has the authority to execute this Agreement and to deal with and on behalf of the Property as provided in this Agreement. Seller shall comply with the Real Estate Settlement Procedures Act of 1974, as amended, if applicable, and furnish all information required for compliance with the Act, and, if applicable, Seller agrees to comply with the Residential Real Property Disclosure Act, as amended.

From and after the Effective Date of this Agreement, Seller agrees to:

(i) cooperate fully with Brokerage and the Designated Agent; (ii) refer all inquiries to Brokerage and the Designated Agent; (iii) allow access and entry to the Property at convenient times by Brokerage, the Designated Agent and cooperating brokers (whether alone or accompanied by Brokerage or the Designated Agent) for the purpose of showing the Property to prospective buyers or lessees; (iv) if the Property is leased or occupied by a tenant, to comply with Paragraph 8(E) of this Agreement; (v) conduct all negotiations through Brokerage or the Designated Agent; and (vi) pay Brokerage compensation pursuant to the terms of Paragraph 11 below.

A. **Title. At least 5 days prior to closing,** Seller shall furnish an owner's title insurance policy in the amount of the purchase price showing good and merchantable title, and execute and deliver, or cause to be executed and delivered, to the buyer a proper instrument of conveyance.

B. **Survey.** If the Property is not a condominium or a cooperative, then prior to closing, Seller shall furnish to the buyer at least 5 days prior to closing a survey by a licensed land surveyor dated not more than 6 months prior to date of closing (as defined in Seller's Real Estate Sale Contract) showing the present location of all improvements on the Property. If the buyer or buyer's mortgagee desires a more recent or extensive survey, then the survey shall be obtained at the expense of either the buyer or seller, as agreed to by buyer and Seller.

C. **Lock Box.**

Seller (**check one**) ☐ [does] **OR** ☐ [does not] authorize Brokerage and its agent to place an electronic or combination lock box on the Property in accordance with the terms and conditions of this Agreement for the purpose of providing a means to access the Property by (i) cooperating real estate agents and (ii) other parties customarily involved in a real estate transaction including vendors or service providers, provided that other parties are accompanied by the Brokerage or Designated Agent, or prior notice is given to Seller of each access by vendors or service providers and Seller does not object.

In addition to the authorization granted above, Seller also authorizes the following unlicensed individuals (example: unlicensed assistant, photographer, etc..) access to the lock box whether they are accompanied or unaccompanied by the Brokerage or Designated Agent: _____. Additional authorizations may be provided by Seller in writing. Seller may provide authorization for additional individuals to access the Property using the Lock Box by providing written permission (e.g. by email, text message, or letter) to Designated Agent.

Whether authorized here or in the future by Seller's written direction, Seller shall hold Brokerage, its agents, and any Multiple Listing Service, of which Brokerage is a participant, harmless from any and all liability, claims, judgments, obligations, or demands against Brokerage and/or Designated Agent as a result of Seller's authorization to use a "Lock Box," including, but not limited to, any and all liabilities and costs, including reasonable attorneys' fees, incurred by Brokerage and/or Designated Agent as a result of this authorization, except for any criminal or gross negligence on the part of the Brokerage and/or Designated Agent. If no selection is made, Seller shall be deemed to have provided Brokerage and its agent the authorizations provided in this subsection.

D. **Seller's Personal Property.** Seller has been advised by Brokerage of the importance of safeguarding or removing valuables now located within the Property and the need to obtain personal property insurance through Seller's insurance company.

E. **Leased Property.** If the Property is leased or occupied by a tenant, Seller acknowledges and agrees to the following: (i) Seller has notified and advised the tenant and occupants of this Agreement, including, without limitation, the terms and provisions of Paragraph 8(C); (ii) Seller will comply with all of the provisions of the Chicago Residential Landlord and Tenant Ordinance and any other laws, regulations, and ordinances relating to the provision of notice to, and obtaining permission from, any tenant or occupant of the Property for the Brokerage, its agent, cooperating real estate agents, and prospective buyers or lessees to enter the Property during reasonable times during the term of the Agreement; (iii) it is Seller's responsibility to keep

the Brokerage informed of any times that Seller's tenant or occupant has not agreed to provide access to the Property; and
(iv) Seller has advised all of the tenants and occupants of the Property of the importance of safeguarding or removing valuables
now located within the Property and the need to obtain personal property insurance during the term of this Agreement.

9. FAIR HOUSING AND NONDISCRIMINATION. IT IS ILLEGAL FOR EITHER SELLER OR THE BROKERAGE TO REFUSE TO DISPLAY, LIST, LEASE OR SELL, OR REFUSE TO NEGOTIATE FOR THE LEASE OR SALE OF, OR OTHERWISE MAKE UNAVAILABLE OR DENY, REAL ESTATE TO ANY PERSON BECAUSE OF ONE'S MEMBERSHIP IN A PROTECTED CLASS, E.G.: RACE, COLOR, RELIGION, NATIONAL ORIGIN, SEX, ANCESTRY, AGE, MARITAL STATUS, PHYSICAL OR MENTAL DISABILITY, FAMILIAL STATUS, OR ANY OTHER CLASS PROTECTED BY ARTICLE 3 OF THE ILLINOIS HUMAN RIGHTS ACT OR FEDERAL FAIR HOUSING LAWS. SELLER AND BROKERAGE ACKNOWLEDGE THAT THEY SHALL ALSO BE BOUND BY THE PROVISIONS OF STATE AND LOCAL (CITY AND/OR COUNTY) HUMAN RIGHTS OR FAIR HOUSING ORDINANCES IF ANY AND AGREE TO COMPLY WITH SAME.

Seller Initials: _____ **Seller Initials:** _____

10. BUYER LOVE LETTERS. A potential buyer of the Property may include in or with their offer personal information about the potential buyer or the potential buyer's family. These communications are often referred to as "Buyer Love Letters" or "Offer Letters." This personal information may include photos and information about the potential buyer or the potential buyer's family being a member of a protected class (e.g. race, color, religion, national origin, sex, ancestry, age, marital status, physical or mental disability, family status, or any other class protected by the Article 3 of the Illinois Human Rights Act or federal fair housing laws). Receipt of such information may expose Seller to claims that the personal information influenced Seller's decisions with regards to the sale of the Property in a manner that violates the Illinois Human Rights Act and/or federal and local fair housing laws.

Check and initial if applicable

☐ Seller **does not** desire Brokerage or Designated Agent to provide Seller with any "Buyer Love Letters" or "Offer Letters", whether provided by the buyer or buyer's agent. If Seller indicates that it does not desire Brokerage to provide Seller with such "Buyer Love Letters or "Offer Letters", Seller is (i) waiving the Brokerage's duties to present all offers to Seller pursuant to Section 15-15 of the Real Estate License Act of 2000, 225 ILCS 454/15-15, and (ii) authorizing Brokerage and Designated Agent to withhold from Seller any Buyer Love Letter or Offer Letter that includes personal information about the potential Buyer or potential Buyer's family being a member of a protected class. If Brokerage or Designated Agent does withhold such personal information, Brokerage or Designated Agent will still provide Seller with information about the amount of the offer and other material terms contained in the offer.

Initial if Checked: Seller Initials: _____ **Seller Initials:** _____

11. LISTING BROKERAGE COMPENSATION. For providing its services to Seller pursuant to this Agreement, Seller agrees to pay an upfront fee to Brokerage for professional services in the amount of **(check one)** ☐ \$ _____ (**"Listing Fee"**) OR ☐ None. Unless stated otherwise in this Agreement, the Listing Fee (if applicable) is non-refundable and due upon signing of this Agreement.

In addition to the Listing Fee, Seller shall pay Brokerage as follows: **(check all that apply)**

- ☐ A. **Percentage Commission.** Seller shall pay Brokerage a commission in the amount of _____ % [percent] of the purchase price set forth in the purchase and sales contract plus \$ _____ (**"Listing Commission"**)
- ☐ B. **Flat Rate.** Seller shall pay Brokerage a flat rate of \$ _____ (**"Brokerage Fee"**).
- ☐ C. **Unrepresented Buyer Compensation.** If a buyer for the Property is not represented by a licensed real estate broker, for Brokerage's additional ministerial and administrative assistance that may be caused by a buyer being unrepresented, Seller agrees to pay Brokerage an additional compensation of _____ % [percent] of the purchase price set forth in the purchase and sales contract plus \$ _____ (**"Unrepresented Buyer Compensation"**). Seller agrees that the Unrepresented Buyer Compensation is in addition to the Listing Commission or Brokerage Fee.
- ☐ D. **Rental Commission.** In the event Seller enters into a leasing agreement with a tenant during the term of this Agreement, Seller agrees to pay Brokerage a rental commission of _____ plus \$ _____ (**"Rental Commission"**). In the event the Property is later purchased by the tenant, or an option to purchase is later granted to and exercised by the tenant, then in addition to the Rental Commission, Seller must pay Brokerage the Listing Commission, Brokerage Fee, or the fees set forth in Section 11.E below.



E. Other.

(“Other Compensation”)

The Listing Commission, Brokerage Fee, Unrepresented Buyer Compensation, Rental Commission, and Other Compensation are referred to collectively as “**Listing Brokerage Compensation**”. Brokerage shall be entitled to the Listing Brokerage Compensation (a) upon the closing of any Transfer of Property prior to the Termination Date, regardless of whether the Transfer of Property resulted from the service and/or effort of the Brokerage, Designated Agent, Seller or any other persons or entities; (b) upon the closing of any Transfer of Property within 180 days after the Termination Date to any person to whom the Property was submitted prior to the Termination Date; or (c) upon Seller’s default in a purchase and sales contract with a ready, willing, and able buyer.

Notwithstanding the foregoing, if (i) the Property is residential property of four units or less, (ii) the Termination Date has passed, and (iii) Seller has entered into a valid, bona fide, written listing agreement with another licensed real estate broker during the 180 day period, then Brokerage shall not be entitled to any Listing Brokerage Compensation pursuant to this Agreement on any Transfer of Property. For Property which is not residential property of four units or less, if the Property is listed with another licensed real estate broker during the 180 day period following the Termination Date, Seller shall be liable for the entire Listing Brokerage Compensation.

No amendment or alteration with respect to the amount of Listing Fee or Listing Brokerage Compensation, or time of payment of Listing Fee or Listing Brokerage Compensation, shall be valid or binding unless made in writing and signed by the parties hereto. Listing Brokerage Compensation is to be paid at time of execution and delivery of deed, option, lease, joint venture agreement, or installment agreement for deed, whichever occurs first, and Brokerage is authorized to deduct the Listing Brokerage Compensation and expenses from the earnest money deposit at that time.

12. BUYER BROKERAGE COMPENSATION. Seller may receive offers from buyers that include, as a term of the purchase and sales contract, Seller’s contribution toward the buyer’s brokerage compensation. Seller and buyer may negotiate Seller’s contribution toward buyer’s brokerage compensation through the purchase and sales contract.

In the event that Seller elects to contribute toward any of buyer’s brokerage compensation, the costs for any buyer’s brokerage compensation is in addition to, and separate from, Listing Brokerage Compensation and will not be paid out of or deducted from Listing Brokerage’s Compensation.

Acknowledgement: Seller Initials _____ Seller Initials _____

13. DISBURSEMENT OF EARNEST MONEY. Seller authorizes Brokerage to accept earnest money from potential buyers to be held by Brokerage in an escrow account maintained in accordance with existing law. At the closing, Brokerage may withdraw from such earnest money deposit the Listing Brokerage Compensation and other expenses or fees paid on behalf of, or at the direction of Seller, in the event the transaction is consummated. It is expressly understood that Brokerage shall not be liable for acts in good faith as Escrowee.

If a dispute arises between Seller and the buyer as to whether a default had occurred and Brokerage acts as Escrowee of earnest money, Brokerage shall hold the earnest money and pay it out as agreed to in writing by Seller and the buyer, or as directed by a court of competent jurisdiction.

In the event of a dispute, Seller agrees that Brokerage, as Escrowee, may give written notice to Seller and buyer of the intended disbursement of Earnest Money, indicating the manner in which Escrowee intends to disburse in the absence of any written objection. If neither party objects in writing to the proposed disposition of the Earnest Money within 30 days after the date of notice, then Escrowee shall proceed to disburse the Earnest Money as previously noticed by Escrowee. If either Seller or buyer objects in writing to the intended disposition within the 30 day period, then the Brokerage may deposit the funds with the Clerk of the Circuit Court by the filing of an action in the nature of an Interpleader. Seller agrees that Brokerage may be reimbursed from the earnest money for all costs, including reasonable attorneys’ fees and court costs, related to the filing of the Interpleader and hereby agrees to indemnify and hold Brokerage harmless from any and all claims and demands, including the payment of reasonable attorneys’ fees, costs and expenses arising out of the default, claims and demands. If Seller defaults, the earnest money, at the option of the buyer, and upon written direction by Seller and the buyer or as directed by a Court of competent jurisdiction, shall be refunded to the buyer and Seller shall not be released from any of its obligations under this Agreement. Notwithstanding anything in this Agreement to the contrary, disbursement of earnest money shall be in accordance with the Real Estate License Act of 2000, as amended.

178 **14. DUAL AGENCY.** By checking "Yes" and signing below, Seller acknowledges and agrees that the Designated Agent ("**Licensee**") may
179 act as a Dual Agent (represent both seller and buyer or landlord and tenant) for the sale or lease of property. Seller acknowledges they
180 were informed of the possibility of this type of representation. Before signing this document please read the following:

181 Representing more than one party to a transaction presents a conflict of interest since both clients may rely upon Licensee's
182 advice and the client's respective interests may be adverse to each other. Licensee will undertake this representation only with
183 the written consent of ALL clients in the transaction. Any agreement between the clients as to a final contract price and other
184 terms is a result of negotiations between the clients acting in their own best interests and on their own behalf. You acknowledge
185 that Licensee has explained the implications of dual representation, including the risks involved, and understand that you have
186 been advised to seek independent advice from your advisors or attorneys before signing any documents in this transaction.

187 **WHAT A LICENSEE CAN DO FOR CLIENTS WHEN ACTING AS A DUAL AGENT:**

188 1. Treat all clients honestly. 2. Provide information about the property to the buyer or tenant. 3. Disclose all latent material
189 defects in the property that are known to the Licensee. 4. Disclose the financial qualification of the buyer or tenant to the seller
190 or landlord. 5. Explain real estate terms. 6. Help the buyer or tenant arrange for property inspections. 7. Explain closing costs
191 and procedures. 8. Help the buyer compare financing alternatives. 9. Provide information to seller or buyer about comparable
192 properties that have sold so both clients may make educated decisions on what price to accept or offer.

193 **WHAT A LICENSEE CANNOT DISCLOSE TO CLIENTS WHEN ACTING AS A DUAL AGENT:**

194 1. Confidential information that the Licensee may know about a client, without that client's express consent. 2. The price or
195 terms the seller or landlord will take other than the listing price without permission of the seller or landlord. 3. The price or
196 terms the buyer or tenant is willing to pay without permission of the buyer or tenant. 4. A recommended or suggested price or
197 terms the buyer or tenant should offer. 5. A recommended or suggested price or terms the seller or landlord should counter
198 with or accept.

199 If either client is uncomfortable with this disclosure and dual representation, please let Licensee know. You are not required to
200 sign this document unless you want to allow Licensee to proceed as a Dual Agent in this transaction. By signing below, you
201 acknowledge that you have read and understand this form and voluntarily consent to Licensee acting as a Dual Agent (that is,
202 to represent BOTH the seller or landlord and the buyer or tenant) should that become necessary.

203 **Seller must select one option below:**

204 ☐ **Yes, I have read the above information and provide my Prior Consent to Dual Agency**

205 ☐ **No, I do not consent to Dual Agency**

206 **Seller Signature:** _____ **Seller Signature:** _____

207 **15. ADDITIONAL TERMS AND PROPERTY INFORMATION.** Seller represents that the following information is true and correct as of the
208 date of this Agreement and shall keep Brokerage and Designated Agent informed of all changes to the following information:

209 (a) Property P.I.N. # _____ Homeowner's Exemption: ☐ Yes ☐ No
210 Real estate taxes for the year 20____ equal \$ _____ Senior Citizen's Exemption: ☐ Yes ☐ No
211 _____ P.I.N. # _____ Senior Freeze Exemption: ☐ Yes ☐ No
212 _____
213 Real estate taxes for the year 20____ equal \$ _____

214 (b) Seller is aware of any circumstances that would affect the transfer of title? ☐ Yes ☐ No
215 (example: probate, divorce, liens, lis pendens, judgments, etc.)
216 If yes, please explain: _____

217 (c) Is Property currently leased? ☐ Yes ☐ No
218 If yes, lease expiration date is _____; rent amount is \$ _____ per _____
219 security deposit amount (if any) is \$ _____

220 (d) The lot size is approximately _____
221 Approximate square feet of the interior of the Property: _____

Seller Initials: _____ Seller Initials: _____

Brokerage Initials: _____

222 (e) **Illinois Condominium Property Act or Cooperative Apartments.** Seller shall comply with the Real Estate Settlement Procedures
223 Act of 1974, as amended. If the Property is a condominium, within 15 days after both parties execute this Agreement, Seller shall furnish
224 to Brokerage a complete set of condominium documents, including the declaration, bylaws, rules, regulations, budget, and meeting
225 minutes. If the Property is a townhouse or condominium and dependent upon the condominium or homeowner association's governing
226 documents, either upon execution of this Agreement or upon Seller's acceptance of an offer by buyer, Seller shall promptly notify the
227 appropriate representative of the condominium association or any affiliated organization of the contemplated transaction. Seller shall
228 furnish to the buyer a statement from an authorized officer or agent of the condominium association certifying payment of assessments
229 for condominium common expenses, and if applicable, proof of waiver or termination of any right of refusal or general option contained
230 in the declaration of condominium together with any other documents required by the declaration of condominium or its bylaws as a
231 precondition to the transfer of ownership. At closing, Seller shall deliver to the buyer all appropriate documents properly endorsed and
232 a survey or plat of the condominium unit showing the location of all improvements of the unit and further showing any parking spaces
233 or garages that will be conveyed. Seller shall comply with all of the conditions and stipulations of the Illinois Condominium Property
234 Act (765 ILCS 605/1 et seq.), as amended, as may be applicable.

235 If the Property is a cooperative apartment, within 15 days after both parties execute this Agreement, Seller shall furnish to Brokerage
236 the cooperative documents including without limitation the proprietary lease, stock certificate, trust agreement, and bylaws. If the
237 Property is a cooperative, then, no later than 15 days after both parties execute this Agreement Seller shall furnish to Brokerage a
238 complete set of cooperative documents, including the proprietary lease or trust agreement, bylaws, and if available, a survey.

239 **Seller shall complete the following information:**

240 Management Contact: _____

241 Management Phone: _____ Management Email: _____

242 Current monthly assessment equals \$ _____

243 Assessment includes: _____

244 Waiver of Right of First Refusal necessary? ☐ Yes ☐ No

245 Seller (**check one**) ☐ [is] **OR** ☐ [is not] aware of a proposed special assessment. Seller shall keep Brokerage informed of all
246 Board of Directors/Managers actions. Seller shall keep Brokerage informed of any change to this information.

247 If applicable, the total amount of special assessment is \$ _____ with a remaining balance due of \$ _____
248 payable through _____. Special assessments of \$ _____ are payable (**check all that apply**) ☐ Annually;
249 ☐ Semi-Annually; ☐ Quarterly; ☐ Monthly.

250 (f) If this property is new construction, Rider 13, "New Construction Insulation Disclosure", must be completed and attached.

251 (g) If the Property is income or commercial property, Seller shall provide Brokerage with accurate copies of all leases, income and
252 expense statements, a rent roll, existing environmental reports and relevant information necessary to market the property within 14
253 days after the date both parties execute this Agreement.

254 (h) For residential properties located within the City of Chicago, local ordinances require that all properties must have smoke and
255 carbon monoxide detectors present and in working condition. Seller shall comply with these ordinances. In addition, Seller shall
256 provide Brokerage with the following, if applicable, within 72 hours after both parties execute this Agreement: (a) Illinois Residential
257 Real Property Disclosure Report; (b) Heat Disclosure; (c) Lead Paint Disclosure; (d) Radon Disclosure; and (e) Zoning Certificate.

258 **16. INDEMNITY.** To the extent permitted by law, Seller agrees to indemnify, defend and hold Brokerage, its licensees, agents,
259 employees, managers, members, shareholders, directors, officers and successors (the "Indemnified Parties") harmless from all claims,
260 disputes, litigation, expenses and reasonable legal fees arising from (a) failure by Seller to disclose any facts, damage or material defects,
261 latent or otherwise, relating to the Property; (b) any misrepresentation by Seller to Brokerage or a buyer; (c) any dispute between Seller
262 and buyer or any third party, or a dispute between any third party and Brokerage arising out of performance of this Agreement,
263 including without limitation disputes as to the disposition of any earnest money deposit held by Brokerage, and personal injuries or
264 death sustained by visitors to the Property; (d) that Seller failed to pay, either in whole or in part, a buyer brokerage compensation to
265 a buyer's brokerage when due; or (e) a breach of this Agreement by Seller. Seller agrees to safeguard and/or remove any valuable
266 personal property in the Property (e.g., jewelry or artwork) and represents and warrants that it has personal property insurance on its

267 personal property. Seller further agrees that Brokerage and the Indemnified Parties shall not be liable for any personal injury, death,
268 damage to the Property, or damage to or theft of Seller's personal property caused by third-parties, including without limitation,
269 individuals or companies that provide home staging services.

270 **17. PROMOTING AND ADVERTISING PROPERTY PER THE ILLINOIS REAL ESTATE LICENSE ACT OF 2000, AS AMENDED.**

271 Brokerage is hereby authorized to promote and advertise the Property as Brokerage deems appropriate, including but not limited to
272 (i) displaying signs on the Property, (ii) placing the Property in any multiple listing service in which Brokerage participates at the time a
273 contract is executed, (iii) promoting the Property on Brokerage's internet website, social media sites, and on the internet websites of
274 other brokers, and/or through any other advertising medium which Brokerage may subscribe to or otherwise use, and (iv) releasing
275 information as to the amount of the selling price, type of financing, and number of days to sell this Property to any multiple listing
276 service in which Brokerage participates at the time a contract is executed. Brokerage's sole duty is to use Brokerage's best efforts to
277 affect a Transfer of Property, and Brokerage is not charged with the custody of the Property, its management, maintenance, upkeep
278 or repair.

279 **18. MULTIPLE LISTING SERVICE (MLS) AND ONLINE DISPLAY.** MLS rules require Brokerage to input Property into the MLS within 48
280 hours of the Effective Date of this Agreement or within 24 hours of publicly accessible advertising. If Seller does not want the Property
281 inputted into the MLS within 48 hours of the Effective Date, Seller may provide such direction by checking an option below.

282 Seller understands the implications of not submitting Property into the MLS database and authorizes Brokerage as follows:

283 *(If applicable, check only one)*

- 284 ☐ A. Do not submit Property to the MLS for a period of _____ calendar days from the Effective Date of this Agreement.
- 285 ☐ B. Do not submit Property to the MLS until _____ (date).
- 286 ☐ C. Do not submit Property to the MLS until additional service(s) (e.g. virtual tours, professional photography, painting, staging,
287 etc.) has been completed. Type of service(s): _____
- 288 ☐ D. Do not submit Property to the MLS during the entire term of this Agreement.
- 289 ☐ E. Do not submit Property to the MLS until given further written notice.

290 **If Seller elects to submit Property as a private listing status to the MLS, the parties shall complete a separate Private Listing Status**
291 **Authorization.**

292 **Online Listing Display**

293 Consistent with the promoting and advertising provisions of Paragraph 17, any internet website on which the Property is promoted
294 may (i) display the address of the Property; (ii) display listing remarks regarding the Property, (iii) display the price history of the
295 Property, (iv) display the market time of the Property, (v) allow third parties to write comments or reviews about the Property, or
296 display a hyperlink to such comments or reviews, and (vi) include an automated estimate of the fair market value of the Property, or
297 display a hyperlink to such an estimate.

298 Notwithstanding anything to the contrary above, if Seller checks "No" for any of the listing display authorizations at the end of this
299 Paragraph 18, Brokerage will disable or discontinue such designated features on its website. Brokerage will also input into any multiple
300 listing service in which it participates the Seller's elections at the end of this Paragraph 18, provided, however, that Seller acknowledges
301 that other than inputting Seller's elections into such multiple listing service, Brokerage may not have control over third party websites
302 and has no further duties to ensure that such third party websites comply with Seller's elections. Seller further acknowledges that third
303 party websites may notify its customers and visitors to its website that a listing display option has been disabled or discontinued "at
304 the request of Seller".

305 For **agent-client websites** that display listings only to authorized or registered users (also known as Virtual Office Websites or VOW)

306 **Seller authorizes: (check all that apply)**

307 ☐ Yes ☐ No their online listing be displayed on virtual office websites (agent-client websites that require registration).

308 *If Yes:*

309 ☐ Yes ☐ No their address be displayed on agent-client websites.

310 ☐ Yes ☐ No listing remarks be displayed on agent-client websites.

311 ☐ Yes ☐ No comments on their online listing on agent-client websites.

312 ☐ Yes ☐ No the display of automated price estimates on agent-client websites.

313 For public consumer websites, such as publicly accessible national listing aggregation websites (also known as Internet Data Exchange or IDX)

314 Seller authorizes: (check all that apply)

315 ☐ Yes ☐ No their online listing be displayed on public consumer websites.

316 If Yes:

317 ☐ Yes ☐ No their address be displayed on public consumer websites.

318 ☐ Yes ☐ No listing remarks be displayed on public consumer websites.

319 ☐ Yes ☐ No comments on their online listing on public consumer websites.

320 ☐ Yes ☐ No the display of price history on public consumer websites.

321 ☐ Yes ☐ No the display of market time on public consumer websites.

322 ☐ Yes ☐ No the display of automated price estimates on public consumer websites.

323 Acknowledgement: Seller Initials _____ Seller Initials _____

324 **19. FIXTURES AND PERSONAL PROPERTY.** In conjunction with any Accepted Offer, Seller agrees to transfer by a bill of sale, all heating,
325 electrical, and plumbing systems that are owned by Seller and serve the Property together with the following to the buyer:

326 (check or enumerate applicable items.)

☐ Refrigerator_____	☐ Smart Doorbell_____	☐ Central Air Conditioner_____	☐ Window Treatments_____
☐ Oven/Range_____	☐ Smart Lock_____	☐ Window Air Conditioner_____	☐ Tacked Down Carpeting_____
☐ Microwave_____	☐ Intercom System_____	☐ Smart Thermostat_____	☐ Fireplace Screen/Equipment_____
☐ Dishwasher_____	☐ Security System_____	☐ Electronic air filter_____	☐ Fireplace Gas Log_____
☐ Garbage Disposal_____	☐ Owned OR ☐ Rented	☐ Central Humidifier_____	☐ Firewood_____
☐ Trash Compactor_____	☐ Satellite Dish_____	☐ Radiator Covers_____	☐ Attached Gas Grill_____
☐ Washer_____	☐ Attached TV(s)_____	☐ Lighting Fixtures_____	☐ Existing Storms and Screens_____
☐ Dryer_____	☐ TV Antenna_____	☐ Ceiling Fan_____	☐ Outdoor Play Set/Swings_____
☐ Water Softener_____	☐ Multimedia Equipment_____	☐ Electronic Garage Door(s)	☐ Outdoor Shed_____
☐ Sump Pump_____	☐ Stereo Speakers and/or	with _____remote unit(s)_____	☐ All Planted Vegetation_____
☐ Smoke & Carbon	Surround Sound_____	☐ Built-in or Attached Shelves	☐ Other Equipment
☐ Monoxide Detectors_____		Shelves or Cabinets_____	_____

339 Seller also transfers the following: _____
340 _____

341 The following items are excluded from the sale: _____

342 **20. DISPUTE RESOLUTION.** The parties agree that any dispute, controversy or claim arising out of or relating to this Agreement, any
343 breach of this Agreement by either party, or Brokerage's relationship with Seller pursuant to this Agreement shall be resolved only by
344 arbitration in accordance with the Code of Ethics and Arbitration Manual of the National Association of REALTORS®, as amended from
345 time to time, through the facility of the Chicago Association of REALTORS®. The parties agree to be bound by any award rendered by
346 any professional standards arbitration hearing panel of the Chicago Association of REALTORS® and further agree that judgment upon
347 any award rendered by a professional standards arbitration hearing panel of the Chicago Association of REALTORS® may be entered in
348 any court having jurisdiction. The parties agree to execute any arbitration agreements, consents and documents as may be required by
349 the Chicago Association of REALTORS® to facilitate any arbitration. SELLER HEREBY WAIVES WITH RESPECT TO ANY DISPUTE WITH
350 BROKERAGE THE RIGHT TO PARTICIPATE IN A CLASS ACTION OR OTHER REPRESENTATIVE ACTION IN COURT, EITHER AS A CLASS
351 REPRESENTATIVE OR CLASS MEMBER OR THE RIGHT TO JOIN OR CONSOLIDATE CLAIMS WITH OTHER INDIVIDUALS.

352 **21. REPRESENTATION OF MULTIPLE SELLERS.** Seller understands and agrees that Brokerage may from time to time represent or assist
353 other sellers who may be interested in selling property to the buyers with whom Brokerage has a buyer agency contract or with whom
354 Brokerage is working as a customer. Seller consents to Brokerage's representation of other sellers before, during and after the
355 expiration of this Agreement and expressly waives any claims, including, but not limited to, breach of fiduciary duty or breach of
356 contract, based solely upon Brokerage's representation or assistance of other sellers who may be interested in selling property to the
357 buyers with whom Brokerage has a buyer agency contract or with whom Brokerage is working as a customer.

358 **22. TERMINATION OF AGREEMENT.** In the event that one or both of the parties desires to terminate this agreement, except for
359 termination done pursuant to paragraph 2 of this Agreement, this paragraph applies.

360 **A. Termination by Mutual Agreement.** The parties may mutually agree to terminate this Agreement at any time, provided
361 that Seller shall pay to Brokerage any amounts agreed to by the parties to terminate the Agreement, if any, prior to, and
362 as a condition of, the termination of this Agreement being deemed effective.

363 **B. Termination by Seller.** Seller shall have the right to terminate this Agreement at any time and for any reason by providing
364 notice to Brokerage. In the event that Seller terminates this Agreement pursuant to this subsection for any reason other
365 than a breach of this Agreement by Brokerage, or pursuant to Paragraph 2 regarding a Termination Date more than one
366 year from the Effective Date, then Seller shall pay to Brokerage, prior to and as a condition of the termination of this
367 Agreement being deemed effective, the greater of (i) any amounts owed pursuant to Paragraph 11 of this Agreement or
368 (ii) the sum of \$ _____, which fee shall compensate Brokerage for its services prior to termination, plus
369 Brokerage's reasonable expenses to list and market the Property. Seller's obligations under this subsection shall survive
370 the termination of this Agreement.

371 **C. Termination by Brokerage.** Brokerage shall have the right to terminate this Agreement at any time and for any reason
372 by providing notice to Seller. In the event that Brokerage terminates this Agreement pursuant to this subsection for any
373 reason other than a breach of this Agreement by Seller, Brokerage shall not be entitled to fees or reimbursement of
374 Brokerage's costs. In the event that Brokerage terminates this Agreement due to Seller's breach of this Agreement, Seller
375 and Brokerage agree that calculating Brokerage's actual damages may be difficult; therefore, Seller shall pay to Brokerage,
376 within 5 business days of termination, the Listing Brokerage Compensation as defined in Paragraph 11 based on the
377 purchase price in the purchase and sales contract or Marketing Price if no contract as liquidated damages and to
378 compensate Brokerage for Brokerage's time, expenses and services involved in marketing the Property.

379 **23. NOTICE.** All notices required by this Agreement shall be in writing and shall be served upon the Parties at the addresses provided
380 in this Agreement. The mailing of notice by registered or certified mail, return receipt requested, shall be sufficient service. Notices
381 may also be served by personal delivery or commercial delivery service or by the use of a facsimile machine. In addition, facsimile
382 signatures or digital signatures shall be sufficient for purposes of executing this Agreement and shall be deemed originals. E-mail
383 notices shall be deemed valid and received by the addressee when delivered by e-mail and opened by the recipient. Each Party shall
384 retain a copy of proof of facsimile transmission and email notice and provide such proof, if requested.

385 **24. MISCELLANEOUS.**

- 386 A. Where applicable, the singular form shall include the plural, and the masculine form shall include the feminine and neuter,
387 and vice versa.
- 388 B. This Agreement shall be binding upon and inure to the benefit of the heirs, executors, administrators, successors, and assigns
389 of the parties to this Agreement.
- 390 C. Business Days are defined as Monday through Friday, excluding Federal holidays. Business Hours are defined as 8:00 A.M. to
391 6:00 P.M. Chicago Time.

392 **25. ADDITIONAL TERMS AND ATTACHMENTS.** _____
393 _____
394 _____

--[SIGNATURE PAGE TO FOLLOW]--

395 **SELLER:**
396 Seller's Signature: _____
397 Seller's Signature: _____
398 Date: _____

399 All Legal Title Holders or Legal Agent for Seller:
400 _____
401 _____
402 _____
403 Seller's Name (print): _____
404 Seller's Name (print): _____
405 Address: _____
406 City: _____ State: _____ Zip: _____
407 _____ Phone #: _____
408 _____ Phone #: _____
409 _____ Phone #: _____
410 _____ Phone #: _____
411 Email Address 1: _____
412 Email Address 2: _____

BROKERAGE:
Designated Managing Broker Name: _____

Signature: _____
Date: _____

Brokerage Name: _____
Address: _____
City: _____ State: _____ Zip: _____
Office Phone: _____ Fax: _____
Office MLS ID: _____

Designated Agent Name (print) _____
Designated Agent MLS ID: _____
Agent Phone 1: _____
Agent Phone 2: _____
Agent Fax: _____
Agent Email: _____